

GOVERNMENT OF PUNJAB
DEPARTMENT OF LOCAL GOVERNMENT
(Town Planning Wing)

NOTIFICATION

The 24 April, 2018.

No. CTP(LG)-2018/ 1309 Whereas a draft of Model Municipal Outdoor Advertisement Bye- Laws 2018 was published under sub-section (1) of section 201 of the Punjab Municipal Act, 1911 (Punjab Act No. 3 of 1911) / sub-section (2) of section 399 of Punjab Municipal Corporation (Second Amendment) Act, 2014 (Punjab Act No. 3 of 2015) vide notification No. CTP/2018/626 dated 19.02.2018 for the information of the persons likely to be affected thereby and to send any objection or suggestion with regard to the said Byelaws, if any within a period of thirty days from the date of publication in the Official Gazette.

2. In pursuance of the provision of sub-section (1) of section 201 of the Punjab Municipal Act, 1911 (Punjab Act No. 3 of 1911) / sub-section (2) of section 399 of Punjab Municipal Corporation (Second Amendment) Act, 2014 (Punjab Act No. 3 of 2015), the Governor of Punjab is pleased to notify the Model Municipal Outdoor Advertisement Bye-Laws 2018 as under:-

CHAPTER – I
TITLE AND COMMENCEMENT

- 1.1 These Bye-Laws may be called the Punjab Model Municipal Outdoor Advertisement Bye-Laws 2018.
- 1.2 These shall come into force from the date of its notification.
- 1.3 These Bye-Laws shall apply to the entire area under the jurisdiction of all Municipal Corporations/ Municipal Councils / Nagar Panchayats or to such other areas, as the State Government may extend by notification in the official gazette.

2. Definition:-

In the order unless there is anything repugnant in the subject or context:-

- (i) **“Advertisement”** shall mean any device or representation in any manner such as announcement or direction by word, letter, model, image, or a combination thereof sign by means of posters, hoarding, banners, temporary arches, electronic display, name boards, direction boards, balloons or any other visible etc. displayed to promote a product or service in a commercial sense under categories defined in The Punjab Municipal Outdoor Advertising Policy, 2018.
- (ii) **“Advertisement Regulation Committee”** means Committee under the chairmanship of Commissioner/Executive Officer of the concerned ULB, and comprising of representative of Deputy Commissioner not below the rank of Tehsildar, Executive Engineer, PWD (B&R) or his/her representative but not below the rank of SDO, Executive Engineer, PSPCL or his/her representative but not below the rank of SDO, Executive Engineer, BSNL or his/her representative but not below the rank of SDO, Representative of the Traffic Police not below the rank of Inspector, Representative of National Highway Authority of India not below the rank of Assit. Manager, where ever required and Representative of the Transport Department.

- (iii) **"Advertisement Zoning Plan"** means advertisement plan approved by the Advertisement Regulation Committee (ARC).
- (iv) **"Enclosed Land"** shall means the land which is wholly or for the most part enclosed within the hedge fence, wall or similar screen or structure and shall not include any railway station together with the yards and fore court thereof, whether enclosed or not, any public park, public garden or other land held for the use or enjoyment of the public.
- (vi) **"Illuminated Advertisement"** shall mean any advertisement with self-luminous by an outside source of light, but not include an illuminated display of foods if such display:
 - (a) is of goods merely bearing labels showing the name of articles of its manufacturer or of other : and
 - (b) is made by lighting which is not, in the opinion of the Commissioner/Executive Officer more than is necessary to make the goods labels visible at night.
- (vii) **"Name Plate"** shall mean a plate announcing the name of owner and or name of occupier of building and/or name of a building upon which such plate is fixed, exhibited, pasted, retained or displayed, provided that the size of the letters constituting such plate does not exceed 2" in height and the total area does not exceed 4 square feet.

3. Regulation and control of advertisement

As per provisions of the Punjab Municipal Outdoor Policy, 2018 read with Punjab Municipal Act, 1911 / Punjab Municipal Corporation Act 1976.

4. Outdoor Advertisement and Road Safety criteria

The permission criteria for the display of advertising devices within the jurisdiction of ULBs are intended to ensure that a high level of safety for road users is maintained and traffic efficiency is assured. An advertising device may be considered a traffic hazard

- a) If it interferes with road safety or traffic efficiency
- b) If it interferes with the effectiveness of a traffic control device (eg. traffic light, stop or give way sign).
- c) Distracts a driver at a critical time (e.g. making a decision at an intersection).
- d) Obscures a driver's view of a road hazard (e.g. at crossing or traffic red lights in the road).
- e) Gives instructions to traffic to "stop", "halt" or other (i.e. Traffic Red Light).
- f) Imitates a traffic control device.
- g) Is a dangerous obstruction to road or other infrastructure, traffic, pedestrians, cyclists or other road- users.
- h) Is in an area where there are several devices and the cumulative effect of those devices may be potentially hazardous.
- i) If situated at locations where the demands on drivers' concentration due to road conditions are high such as major intersections.

5. Control of the Physical Characteristics of Advertisement Devices shall be as follows:-

- (i) Advertising Devices shall not use shapes that could potentially result in an Advertising Device being mistaken for an official traffic sign.

- (ii) The Code of Practice for Road Signs IRC: 67-2001 or its further amendments, by Indian Roads Congress prescribes the basic design parameters of official traffic signs and includes standard legend/background colour combinations.
- (iii) Advertising Devices shall not use colour combinations that could potentially result in an Advertising Device being mistaken for an official traffic sign.
- (iv) Advertising shall not contain flashing red, blue or amber point light sources which, when viewed from the road, could give the appearance of an emergency service or other special purpose vehicle warning light/s,
- (v) All lighting associated with the Advertising Device shall be directed solely on the Advertising Device and its immediate surrounds.
- (vi) External illumination sources shall be shielded to ensure that external 'spot' light sources are not directed at approaching motorists.
- (vii) Illumination of advertising device is to be concealed or be integral part of it
- (viii) Upward pointing light of the device shall not be allowed, any external lighting is to be downward pointing and focused directly on the sign to prevent or minimize the escape of light beyond sign.
- (ix) Any light source shall be shielded so that glare does not extend beyond the Advertising Device.
- (x) The average maintained luminance shall be reduced to 0.5 candela or all together shut, after 2300 hours (11pm) and sunrise by automatic timing devices.
- (xi) Non-static illuminated Advertising Devices (flashing lights) are not permitted within the boundaries of ULBs Jurisdiction roads

6.0 Outdoor hoarding and their Content Criteria

The policy will rely upon self-regulatory controls within the advertising industry to enforce minimum advertising standards. Notwithstanding this approach, the city agencies may take action to modify or remove any Advertising Device that contravene the Advertising Industry's Code of Ethics, (refer List of Negative Advertisements) or that otherwise causes a traffic hazard.

List of negative advertisements

- (a) Nudity
- (b) Racial advertisements or advertisements propagating caste, community or ethnic differences
- (c) Advertisement promoting drugs, alcohol, cigarette or tobacco items
- (d) Advertisements propagating exploitation of women or child
- (e) Advertisement having sexual overtone
- (f) Advertisement depicting cruelty to animals
- (g) Advertisement depicting any nation or institution in poor light
- (h) Advertisement casting aspersion of any brand or person
- (i) Advertisement banned by the Advertisement Council of India or by law
- (j) Advertisement glorifying violence
- (k) Destructive devices and explosives depicting items
- (l) Lottery tickets, sweepstakes entries and slot machines related advertisements
- (m) Any psychedelic, laser or moving displays
- (n) Advertisement of Weapons and related items (such as firearms, firearm parts and magazines, ammunition etc.
- (o) Advertisements which may be defamatory, trade libelous, unlawfully threatening or unlawfully harassing

- (p) Advertisements which may be obscene or contain pornography or contain an "indecent representation of women" within the meaning of the Indecent Representation of Women (Prohibition) Act, 1986
- (q) Advertisement linked directly or indirectly to or include description of items, goods or services that are prohibited under any applicable law for the time being in force, including but not limited to the Drugs and Cosmetics Act, 1940, the Drugs And Magic Remedies (Objectionable Advertisements) Act, 1954, the Indian Penal Code, 1860; or
- (r) Any other items considered inappropriate by the Advertisement Regulatory Committee.

7. Prohibited areas:-

The Commissioner/Executive Officer may by order prohibit the erection, exhibition, fixation, retention or display of all or any class of advertisements in any street road or public park or part thereof or in any place or public.

8. Classification of advertisement devices

The categories of the advertisement devices:-

- Category 1: Large-format advertisements, mainly fixed on Billboards / Unipoles / Bipoles / Variable Message advertising device such as LED, LCD Screens etc. and bridge / flyover panels/ Gantry etc.
- Category 2: Advertisement mounted on public amenities, like public toilets, garbage collection points / flag signs etc;
- Category 3: Fleets and transport related infrastructure;
- Category 4: Advertisement devices for self-advertising;

9. Outdoor advertising and structure criteria

Advertising Device structures including the foundations, for categories 1 and 2 devices, shall be designed and checked for extreme wind conditions, earthquakes, soil bearing capacity etc and shall comply with relevant Indian structural design standards, codes of practice and the policy guidelines. The designs shall be certified by an experienced and practicing structural engineer and shall be submitted to the municipal body before start of work at the site.

- 1. The supporting structure shall have a non-reflective finish to prevent glare.
- 2. The device structure shall be well maintained at all times. It shall be painted in colours that are consistent with, and enhance the surrounding area and will be compliant with the criteria for colours laid out earlier in this policy.
- 3. Official road furniture such as official signs and delineator guide-posts shall not be used as the supporting structure of an advertising device.

10. Outdoor advertising devices and electrical connection

The electrical connections and components in all Advertising Devices shall be in accordance with relevant Indian Standards and designed to ensure there is no safety or traffic risk.

No generator running on diesel / petrol / kerosene or any bio fuel, causing noise, air or water pollution would be allowed for providing power for illumination of any outdoor advertising device.

11. Permissibility of different category of advertising devices

As per schedule – I

12. Specific conditions for different category of advertising devices
As per schedule – II

13. Functions of the Advertisement Regulation Committee

The Advertisement Regulatory Committee (ARC) would accord prior approval to the advertisement sites / devices identified by ULB and advertisement / Zoning Plans indicating the categories of advertisement devices permissible in different areas before floating the tender.

The ARC would also ensure that there is strict compliance of all the provisions of policy and these advertisement bye-laws in respective ULB. In case any practical difficulty arises with respect to implementation of these byelaws or the Zoning Plans, the matter shall be referred to ARC who shall on reference consider and make suitable recommendations to the Government for decision.

14. Jurisdiction

All disputes shall be subject to the jurisdiction of the concerned Civil Court only.

15. Indemnity

A licensee/sign owner/applicant (licensee) shall be required to indemnify the ULBs concerned for the designated Advertising Device and activities located within the jurisdiction of ULBs. The licensee shall indemnify the ULB concerned against all actions, proceedings, claims, demands, costs, losses, damages and expenses which may be brought against, or made upon the ULBs which arise as a result of the installation of an Advertising Device. The licensee shall keep the ULBs indemnified against all actions, proceedings, claims, demands, costs losses damages and expenses which may be brought against, or made upon, the ULBs which might arise from the existence of such Advertising Device.

The advertiser shall always be responsible for any injury or damage caused to or suffered by any person or property arising out of or relating to the display of device/ advertisement and the consequential claim shall be borne by the advertiser who will also indemnify and safeguard the ULBs in respect of any such claim or claims.

16. Insurance

The Licensee shall provide evidence of public liability insurance for the following types of Advertising Devices and activities located within the boundaries of ULBs.

- i. Category 1 Advertising Devices
- ii. Category 2 Advertising Devices
- iii. Category 3 Advertising Devices
- iv. During the term and at its sole cost and expense, the licensee shall obtain and keep (in full force and effect in the joint names of the licensee and ULBs concerned) a public liability insurance policy for their respective rights, interests and liabilities to third parties in respect of accidental death of, or accidental bodily injury to, persons; or accident damage to property.
- v. The public liability policy of insurance shall be for an amount as specified by Government for any single event (or such higher amount as may be notified by Government in writing by the Government from time to time) and shall be effected with and insurer approved by Government and on the terms approved in writing by the Government.

- vi. The public liability policy of insurance shall include a clause in which the Insurer agrees to waive all rights of subrogation or action that it may have or acquire against all or any of the persons comprising the insured.
- vii. The licensee shall produce evidence to the satisfaction of the ULBs of the insurance affected and maintained by the licensee for the purposes of the second paragraph above, within seven days of receiving a written request to do so from the ULBs

17. Appeals

Appeal against any decision of the Commissioner/Executive Officer relating to display of advertisement or any matter related thereto shall lie before the Director, Local Government, Punjab.

Chandigarh
Dated- 24.04.2018

A Venu Prasad, IAS
Principal Secretary to Government of Punjab,
Department of Local Government,
Dated Chandigarh the 26-04-2018

Endst.No. CTP(LG) – 2018 / 1310

A copy is forwarded to the Controller, Printing & Stationary Department, Punjab, SAS Nagar with a request to get this notification may be published in the Punjab Government Gazette Extra ordinary and supply ten spare copies for record.

Endst.No. CTP(LG) – 2018 / 1311-1315


Under Secretary Local Government
Dated Chandigarh the 26-04-2018

A copy of the above is forwarded to the following for information and further necessary action:-

1. Director, Local Government, Punjab, Chandigarh.
2. Commissioners of all Municipal Corporations
3. All Regional Deputy Directors, of Local Government Department in Punjab (with the request to bring this to the notice of all concerned Municipal Councils / Nagar Panchayats)
4. All Officers in the Local Government Department.
5. All Superintendents in the Local Government Secretariat / Directorate.


Under Secretary Local Government

Schedule –I
Permissibility of different category of advertising devices

Summary of permissibility of different category of advertising devices

11.1 Summary for Category-1 Devices

S. No		Description of device	Status	
			Permitted Subject to General permission Criteria	Not Permitted
11.1.1		Billboards/ Unipoles/ Bipoles/ Gantry		
	(i)	Industrial area	Permitted	
	(ii)	Commercial area	Permitted	
	(iii)	Recreational areas	Permitted	
	(iv)	Institutional area	Permitted	
	(v)	Crematoriums and Burial grounds		
	(vi)	Transportation areas like Airports/ Rail Terminals/ Bus Terminals/ Truck Terminals etc.		Not Permitted
	(vii)	Other areas like Residential Area, Heritage, Monument etc.		Not Permitted
	(viii)	On rooftops of any type of buildings		Not Permitted
	(ix)	On mobile vans for purposes of advertising		Not Permitted
11.1.2		Trivision		Not Permitted
11.1.3		Railway Bridge panels		Not Permitted
11.1.4		Flyover panels		Not Permitted
11.1.5		Foot Over Bridge (FOB)	Permitted	
11.1.6		Direction Boards		Not Permitted
11.1.7		Building wraps		Not Permitted
11.1.8		Variable message Advertising devices such as LED, LCD Screens etc.		
	(i)	Industrial area	Permitted	
	(ii)	Commercial Area	Permitted	
	(iii)	Institutional Area	Permitted	
	(iv)	Recreational areas	Permitted	

	(v)	Crematoriums and Burial grounds		Not permitted
	(vi)	Transportation areas like Airports, Rail Terminals/ Bus Terminals/ Truck Terminals etc.		Not permitted
	(vii)	Other areas like Residential Area, Heritage, Monument etc.		Not permitted
	(viii)	On rooftops of any type of building		Not permitted
	(ix)	On mobile vans for purposes of advertising		Not permitted
11.1.9		Ground-Level Hoardings	Permitted for Airport Area only.	

Note:- Airport area means the area under the control of the Airport Authority.

11.2 Summary for Category- 2 devices

S. No	Description of device		Status	
			Permitted Subject to General permission Criteria	Not Permitted
11.2.1	Public amenity mounted devices: (Garbage and toilet facilities)		Permitted	
11.2.2	Devices Mounted on Service oriented facility (Drinking, water, kiosk outside, colony to facilitate payment of bills/etc (G2Ckiosk)			Not Permitted
11.2.3	Devices mounted on Roadside kiosks (Tea/Cold, Drink Kiosk/Fruit juice, Snack bar, Florist, Paan, cigarette, kiosk, puncture repair, Kiosk for barber cobbler, milk booth etc.)			Not Permitted
11.2.4	Devices along with Information for Public (City maps, colony maps etc.)			Not Permitted
11.2.5	Devices mounted on Public assistance facility (Police assistance, traffic police assistance, tourist assistance)			Not Permitted
11.2.6	Devices mounted on street furniture (Benches, dustbins)		Permitted	
11.2.7	Pier or pylon mounted device			
	(i)	Flyover columns	Permitted	
	(ii)	Others		Not Permitted

11.2.8	Pole Kiosk	Permitted. • On each street light pole only two pole kiosks on back to back of 30 inch width and 40 inch height be allowed.	
11.2.9	Vehicular Mounted Devices: On the City buses (of Govt. Undertaking) running Intra/ Inter ULBs the tender for the same would be floated by the ULBs from where the city Bus originates and terminates its journey	Permitted	
11.2.10	Vehicular Mounted Devices: Metro Trains, City Rails	Permitted	
11.2.11	Taxi and intermediate public transport advertising		Not Permitted
11.2.12	Mobile vehicle		Not Permitted
11.2.13	Air Borne devices		Not Permitted (Only Social Messages Permitted)
11.2.14	Roof mounted devices on any type of building.		Not Permitted

11.3 Summary for Category- 3 devices

S.No	Description of device	Status	
		Permitted Subject to General permission Criteria	Not Permitted
11.3.1	Bus Queue Shelter (BQS)	Permitted	
11.3.2	Bus Terminal		Not Permitted
11.3.3	Parking		
	(i) Parking Display Boards	Permitted	
	(ii) Sides of Khokha	Permitted	
	(iii) Parking tickets	Permitted	
	Parking uniforms	Permitted	
11.3.4	Traffic Barricading		Not Permitted

11.4 Summary for Category- IV devices

S. No	Description of device	Status	
		Permitted	Not Permitted

		Subject to General permission Criteria	
11.4.1	Fascia Sign for self-advertising	Permitted • Owner/Occupier of Shop/ SCO/SCF/Bay Shop/Booth will be permitted only one self signage per floor not beyond the width of the floor on its front facade. Such signage must have the Trade/ Business Name and Shop/ Premises etc. number. • Management of the Malls/ Multiplex/ Food Courts will be allowed to install ground mounted display board within its premises for displaying the information regarding business/ office/ Entertainment- Establishments operating within the building. • Multiplex/ Cinema will be allowed to display the posters of movie at the earmarked place. • Hotel, Marriage Palace, Hospitals, Educational Institutes/ Warehouses/ Malls/ Multiplex/ Cinema Halls, Group Housing will be allowed to display its Name/ Logo on any part of building.	
11.4.2	Awning Sign for self-advertising		Not Permitted
11.4.3	Self- Signage on Delivery/ Service Vehicle	Permitted	
11.4.4	Landscape Advertising devices	Permitted. • Where ULB will allot any park/ green belt/ triangle / central verge or any other area to any firm/ company for maintenance under their corporate social responsibility. Firm/ Company will be allowed to display its logo or name on a board/ plate.	

	(i)	Fence Advertising devices	Permitted.	
	(ii)	Devices mounted on Tree Guards	Permitted	
11.4.5		Projected sign for self-advertising		Not permitted
11.4.6		Footway and Roadside vendor sign for self-advertising		Not permitted
11.4.7		Real estate/ Construction sign	Permitted Only 1 self signage per street face	
11.4.8		Welcome Sign	Permitted	
11.4.9		Flag Signs		
	(i)	Industrial area	Permitted	
	(ii)	Commercial area	Permitted	
	(iii)	Recreational areas	Permitted	
	(iv)	Crematoriums and Burial grounds		Not permitted
	(v)	Transportation areas like Airports/ Rail Terminals/ Bus Terminals/ Truck Terminals etc.	Permitted	
	(vi)	Other areas like Residential Area, Institutional, Heritage, Monument etc. Including mixed land use.		Not permitted
	(vii)	On rooftops of any type of building.		Not permitted
	(viii)	On mobile vans for purposes of advertising		Not permitted

Schedule –II

Specific conditions for different category of advertising devices

12.1 Specific conditions: Category 1

S. No.	Type	General description	Description of device	Specific parameters			
				Length	Width	Max Height	Min Ground Clearance
12.1.1	Category-one	Large format outdoor advertising device	Billboards/Unipole	6m	3m	10m	2.5m
			(i) For roads less than 100 feet, road-way				
			(ii) For roads more than 100 feet, roadway	10m	5m	10m	2.5m
12.1.2			Trivision	NA	NA	NA	NA
12.1.3			Railway Bridge panels	NA	NA	NA	NA
12.1.4			Flyover Panels	NA	NA	NA	NA
12.1.5			Foot-Over-Bridge	18m	3m		
12.1.6			Direction Boards	NA	NA	NA	NA
12.1.7			Building Wraps	NA	NA	NA	NA
12.1.8			Variable message Advertising devices such as LED, LCD	10m	5 m	-	-
12.1.9			Ground-Level Hoarding	10m	5m	14 m	-

Note: The Length and Width for advertising display for Category 1 devices can be interchanged/alterd as per suitability as per ARC, but not exceeding the total area (Length multiplied by Width).

12.2 Specific Permission Criteria: Category 1

a.	Lateral placement	• Not permitted in medians. • Permitted on traffic islands and where carriageways diverge. • Not permitted on footpaths. • Where the footpath does not exist the outdoor advertising device shall not be permitted within 1 meter from the edge of existing carriageway.
b.	Longitudinal Placement	• Not permitted within 10 mts of any traffic red-light erected for the regulation of traffic. • Not permitted if any such form as will obstruct the path of pedestrians. • Not permitted if in any manner and at such places as to obstruct or interfere with the visibility of approaching, merging or intersecting traffic. • Not permitted within a round-about of diameter less than 15mts as measured from the outer width of the round-about. • <i>Distance between two advertisement displays on flyover panel/railway bridge/FOB must not be less than 8 mts to avoid visual clutter.</i>
c.	Other placements	The locations where large format outdoor devices are placed along the sides of the railway bridge, flyover than maximum height of the device from the road level shall be measured clearly from the top of flyover and centre of the flyover.

12.3 Specific conditions and provisions : Category 2

Sr. No	Type	General description	Specific parameters				Special conditions
			Length	Width	Area	Min Ground clearance	
12.3.1		Public amenity mounted devices (garbage and toilet facilities)			Up to 23 sq m per single unit	-	Permitted only over approved surfaces of specified properties designed for providing certain civic amenity / facility / service for public benefit.
12.3.2		Devices mounted on service oriented facility: Drinking water, kiosk outside colony to facilitate payment of	N.A.	N.A.	N.A.		The Amenity shall not interfere with the general function of the road premises or cause impediment to sight distances for motorists. The activities of the amenity shall not spillover beyond the designated area on to the surroundings unless otherwise permitted.

		bills / etc. (G2C kiosk)					The facility will not be allowed to be used for any other purpose than what has been agreed to in the contract. No device placed within the designated area of facility shall project beyond the assigned surface proposed in facility. The amenity and the device mounted on the surface of facility shall be such that it creates no hindrance to the flow of vehicular or pedestrian traffic. The advertiser shall be responsible for providing services like water, sewage, garbage collection etc. as required for smooth functioning of the facility and as per the terms of the agreement. Daily and regular upkeep shall be the responsibility of the advertiser, is also responsible for maintenance of hygienic conditions in and around the facility. General illumination required for the functioning of the facility shall be provided and maintained by the Advertiser. The space required for group / queue formation wherever applicable in front of the facility shall be included in the setback from the adjoining curb line or any adjoining structure or site features. No advertising shall be permitted till the facility is completely operational. An "Out of Service" sign shall be placed on the facility case of the facility becoming no operative on account of a fault repair or routine maintenance. All defunct or non operational facilities shall not be allowed to advertise and advertisement. A strict control shall be maintained on the timing of operation of the facility or service and the same shall be displayed appropriately on the facility interface.
12.3.3		Devices mounted on road side kiosks; (Tea / Cold drink Kiosk / Fruit juice, Snack	N.A.	N.A.	N.A.	N.A.	

		bar, Florist, Pan, Cigarette kiosk, puncture repair, Kiosk for barber cobbler, milk booth etc.)					
12.3.4		Devices along with information for public (city maps, colony maps etc.)	N.A.	N.A.	N.A.	N.A.	
12.3.5		Devices mounted on public assistance, facility (police assistance, traffic police assistance, tourist's assistance)	N.A.	N.A.	N.A.	N.A.	
12.3.6		Devices mounted on street furniture (Benches, dustbins)			< 2 sqm		• Advertisement on street furniture shall not exceed 2 sq. mtr. on a single side. • When more than one facility is installed parallel to the roadways or in a cluster, they shall be separated by a minimum of 5mtr. distance. • Shall not be placed so as to obstruct pedestrian movement and shall be located so as to not create a hazard for traffic, bicycle, or wheel chair users in and around the locations. • Not permitted on a road median, which is less than 1.2 mtr wide. • Shall not have sharp edges with a view to avoid a chance of injury or damage to any person or object. • On arterial roads with kerb, the facility should be placed no closer than 1 mtr. from the face of the kerb shall be not less than 0.5 mtr. • Device mounted on street furniture shall be non reflective in nature.
12.3.7		Pier or pylon	0.76m	0.1m	Not	1.2 m	• Surface mounted device shall

		mounted device: flyover columns.			exceeding 0.91 sq.m		be permitted only in the landscaped area under the Viaduct or flyover and shall not spill over to the roads footpaths or to the top. • No Pier surface mounted device shall be permitted on the pier abutting a traffic intersection. • The Pier surface mounted device shall be fitted on every alternate pier after the traffic intersection wherever it cuts under the viaduct on the flyover. • Surface mounted device shall be mounted on two sides of the Metro / Flyover pier in the direction of the traffic flow and not parallel to it. • In case of their being more than one Pier per bay as in the case of Flyovers, maximum of two Surface mounted device shall be permitted per bay preferably on the outer road-side piers. • The Pier surface mounted device shall be fixed to the Pier with extreme care without causing any damage to the structure. Minimizing the contact points with the Pier, the fixing member/s shall be invisible and concealed behind the sign. • The Rights for adverting under the Metro Viaducts and Roadway Flyover shall be granted in lieu of provision and maintenance of landscaping of the areas located directly under the Viaducts and Flyovers.
12.3.8		Pole kiosk	0.76m	0.1m	Not exceeding 0.91 sq.m	1.2m	• On each street light pole only two pole kiosks on back to back of 30 inch width and 40 inch height be allowed • Shall not exceed 0.91sq.m in sign area and shall only be displayed in portrait format. • Under no circumstances shall a sign project beyond 0.1m from the face or the pole on which it is mounted. • Sign shall not be placed so as to obstruct pedestrian movement or view of the traffic (in case where sign is placed on the median of the road) or pedestrians (where

						sign is placed over a pedestrian walkway). • The commercial advertising sign attached to Pole Kiosk shall be non reflective in nature. • The top of a sign shall be at least 2 m below any light fixture and the bottom of such poster not less than 3.0 m above the ground level. • Sign shall not cover any Mandatory / Cautionary signs or the cover plates on street lamp pole. • Sign Shall not be displayed on the first three street lamp poles from any intersection or traffic light • The sides, "top / bottom and the rear sides (in case of single sided sign)" shall be framed with an appropriate material to hide the inside and their fixing system. • The material of the poster can be paper (large sizes printed paper) or stretched vinyl sheet. • No projection, cut out on the pole kiosk is permitted.
12.3.9		Vehicular Mounted Devices: On the City buses (of Govt. Undertaking) running Intra/ Inter ULBs the tender for the same would be floated by the ULBs from where the city Bus originates and terminates its journey				• Area for advertisement/ name/logo shall not exceed 75% of the surface area on each side of the vehicle except the front of the vehicle. • Permitted only on vehicles whose primary purpose is to serve a useful function in the transportation or conveyance of persons from one place to another, unless otherwise specified, no transportation vehicle shall be used for the sole purposes of advertising. • No vehicles carrying advertisement shall be parked on a public right of way or in a location on a private property, which is visible from a public right-of-way. • No animation or movement in any form shall be permitted in fleet advertising. • Advertising devices will be allowed inside the public utility vehicle. • Bus Advertising devices shall not interfere in any way with the mandatory vehicle signs such as purpose of the bus

							service, number plate, etc.
12.3.10		Vehicular Mounted Devices Metro trains , City rails					Metro rails or The City Rails running within the city limits can use the entire exterior body of the rail wagon for the purpose of advertisement.
12.3.11		Taxi and intermediate public transport advertising	NA	NA	NA	NA	
12.3.12		Mobile Vehicle	NA	NA	NA	NA	
12.3.13		Air Borne devices				19.5m	- Air borne devices will be exclusively for social messages / events etc. - The Air Borne Device shall, be erected, fixed and secured in accordance with the specified guidelines as per ULBs offer letter / contract / agreement. - The gas used in inflating the balloon shall not be hazardous or flammable. - No other smaller balloons shall be attached to the balloon or its supporting or secure lines. - Air borne Device not be permitted in the air funnel areas.
12.3.14		Roof mounted devices on any type of building	NA	NA	NA	NA	

12.4 Specific Permission Criteria : Category 2

A	Lateral placement	- Not permitted in road medians except pole kiosks. - Not be permitted on traffic islands and where carriageways diverge so much that oncoming traffic is not visible - Not permitted within the pedestrian footpath and if any part of device is projected in the right of way. - A minimum gap of 2m must be maintained between amenity and site features like pavement curbs, trees, electrical poles, boundary wall etc.
B	Longitudinal placement	- The distance shall be maintained as per the specific contract clauses as mentioned by the ULBs while inviting tenders and proposals. - Any deviation from the clause shall be approved by the Commissioner/Executive Officer of the respective ULB - For devices mentioned under 12.3.1 for amenities, the location shall be such that it does not result in inappropriate stopping or parking of vehicles on roads. - A minimum gap of 2m must be maintained between amenity and site features like pavement curbs, trees, electrical poles, boundary wall etc. - Unless specified the principle of lateral and longitudinal placement will be applicable to category 1 device only.

12.5 Specific conditions : Category 3

Sr. No	Type	Description of device	Specific parameters					Special conditions
			Length	Width	Area	Max Height	Min. Ground Clearance	

12.5.1		Bus Queue Shelter	As per ULBs and Transport Department's approval					• The approach end of passenger transport shelter shall be either open or transparent to provide waiting passengers with maximum visibility of the approaching passenger transport vehicle. • The advertisement has to be backlit or non-lit, front lighting with additional projected brackets etc. shall not be permitted. • The advertisement devices shall not project outside the roof top boundary. • Non-static illumination, neons, changing LEDs, changing of illumination colour, flashing lights etc. are not permitted. • A minimum specified gap of 1500mm must be maintained between the bus shelter and the site features like trees / shrubs, pavement curbs, boundary / building walls, electrical poles etc. • Since a BQS would only be erected at a site where it is not a traffic hazard, the advertisement on the BQS should be excluded from the various conditions of minimum distances from road junctions, etc. The content of advertisement will be governed as per the general advertisement Policy
12.5.2		Bus Terminals	NA	NA	NA	NA	NA	
Specific permission criteria for Bus shelter:- • Any Advertising Device attached to a passenger transport shelter or a seat requires relevant ULBs and Transport Department's approval. • Sponsorship arrangements for the supply of infrastructure may be managed by ULBs and Transport Department's approval subject to keeping in considerations the interest of both. • Where new infrastructure is to be installed on a municipal road; the department shall be consulted by Transport Department and the advertiser (BOT or Swiss Challenge system) early in the planning phase. • The proponent shall provide evidence of a public liability policy of insurance and must provide indemnity for all such installations. • The bus shelters shall be provided with a city map of the neighbourhood area close to bus stop, the map shall be provided for the commuter to read easily.								
12.5.3	Parking							•
	(i)	Parking (Two display boards)			Upto 14.5 sq.m		7 ft.	• Two Display boards of the size 16ftX08ft shall be permissible in each parking site. • The boards will contain advertisement one side and information about parking on the other about parking rates

	(ii)	Sides of Khokha			Up to 12 Sq.m			prescribed by the ULBs
	(iii)	Parking tickets and parking uniforms	As per ULBs approval.					Each parking has a provision for erection of a Khokha for keeping helmets, sitting parking attendant etc. on which advertisement will be permitted on any two sides with the maximum limit of each display not exceeding 10ft. X 10ft. It will be duty of the advertiser to ensure that khokha are well lit and aesthetically built. - The parking tickets shall contain ULBs hologram on the front side with rates of parking fee & advertisement on the reverse side. - There will be uniformity in parking tickets all ULBs authorized parking areas.
12.5.4		Traffic barricading	NA	NA	NA	NA		
Specific permission criteria for parking. It is desirable that the parking advertising rights is clubbed with developing a proper parking information system that should provide real time information on the proper location & availability of parking space to facilitate the vehicle owners as well as the ULBs Authorities for better management of the existing parking scenario. Provision at the entry and exit point regarding the parking fee, timeline, name of the parking site owner with telephone number, complaint box along with advertising devices shall be provided. The parking attendant shall be in uniform with logo in front of uniform and advertisement at rear is permitted. Also the advertisement on parking tickets and small kiosk erected inside.								
12.6 Specific conditions Category 4								
Sr. No.	Type	Description of device	Specific parameters					General conditions
			Length	Width	Area	Max Height	Min Ground clear	
12.6.1		Fascia Sign For self advertising only	Façade of building					- Owner/Occupier of Shop/ SCO/SCF/Bay Shop/Booth will be permitted only one self signage per floor not beyond the width of the floor on its front facade. Such signage must have the Trade/ Business Name and Shop/ Premises etc. number. - No part of any such sign shall extend above the top level of the wall upon or in front of which it is situated. - The width of the signage is allowed to extent of the width of the shop-External Fascia signs shall be mounted at a datum line not lower than 0.9m from top finished level. - Within the enclosed corridors or verandah like in location, the fascia sign must follow the datum line coinciding with the

								top of the shop / business opening. • In case of double height openings in frontage the datum line of the sign shall be at 0.9m from the soffit of the ceiling. • The signage should not obstruct the open railings, jail, grill or any architectural features. In case the signage is placed below the railing or grill its datum line shall coincide with the slab level or up to 0.9m from the bottom of the drop whichever is less to expose the architectural design of the railing. • Each business shall restrict itself to only one fascia sign. • The signs by no means shall exceed the frontage of the premises of the business (in terms of the Width). • One additional sign is permitted for each business establishment having a rear, or side building face with a public entrance. • Internal illumination of a translucent sign face, or individual letters, characters or figures shall be permitted, such that the sign face, letter or character glows. • Flashing and Mechanical Movement graphics are not permitted. Excessive or Special illumination schemes, both on & within buildings (including windows & doorways) and sites shall not be permitted illuminated & animated signs are not to detract from the architecture of the supporting building during the daytime. • The advertiser shall be only permitted to advertise the product / service/ organization name / logo that is being offered from the facility. No surrogate advertising shall be permitted on fascia sign.
12.6.2		Awning sign for self advertising	NA	NA	NA	NA	NA	
12.6.3		Self-signage Delivery and service vehicle						• The delivery vehicles shall only be permitted to advertise the own product / service offered / carried by the

								company / owner. • Taking clearance from Traffic, Traffic Police and RTA etc. shall be the responsibility of advertiser.
12.6.4		Landscape Advertising device	9"	12"				• Gap of 5m has to be maintained between 2 display boards. • All landscape advertising devices shall be located only at designated locations as approved by the ULBs. • All landscape advertising devices shall be adequately maintained to assure continued readability of the message. • Advertiser shall be responsible for suitable upkeep and maintenance and pruning of vegetation surrounding the landscape advertising devices such as shrubs etc. to enable visibility of the advertisement. • No Landscape advertising devices shall project beyond the assigned surface on which it is fixed. • Advertiser shall be responsible for all landscaping related work including planting, daily maintenance & watering etc.
	(i)	Fence advertising Devices	1.5 m	<0.3 m including base	2.25 sqm	1.5 m	As per ULBs approval	• The fence advertising plates measuring 0.2 sq.m in area. • The fence over which sign is fixed shall consist of fence modules of specified design. In case of locations where the fence modules are not already on place, the same shall be designed and approved by Concerned Authority. • The signs shall be fixed on the outer face of the fence parallel to the direction of the traffic flow. • The sign shall be permitted on every alternate fence module maintaining a minimum interval of 3m centre to centre between any two signs. • The sign shall be centered and aligned to the centre of the fence module horizontally. • The total number of fence advertising signs appearing on a particular fence shall depend on the design and

								length of the fence. • The fence shall be covered with green cover such as creepers etc. to the maximum extent possible planted from within. • No illumination in any form shall be permitted on the fence advertising sign. • All fence advertising sign shall be non-reflective in nature. No retro-reflective, reflective film or paint shall be used on fence.
	(ii)	Devices mounted on tree guards	0.3m	0.3 m	0.09 sq. m	The device shall be integral part of tree guard	As per ULBs Approval	Signs shall be square advertising plates measuring 0.3m X 0.3m. • The tree guards shall be provided with 1.5m X 1.5m, or 1.2m X 1.2m cast iron modular grating for protection of roots and for water to seep in the roots, as per approved design by the Municipal Council. • The Tree Guard advertising sign attached to Tree Guard shall be non-reflective in nature. • Advertiser shall make sure to plant, maintain, prune and water the plant without causing any damage to the tree guard or the Tree Guards advertising sign. • No illumination in any form shall be permitted on the Tree Guards advertising sign. • Following ratio of 70:20:10 proportionate number of Tree Guard. Advertising Signs shall be distributed at regular intervals for Commercial Advertising social message and logos of participating Municipal Authority respectively. Permutations and combinations shall be worked out according to the frequency of the Sign. • Permission should be granted in a transparent manner.
12.6.5		Projected sign for self-advertising	NA	NA	NA	NA	NA	
12.6.6		Footway and road side vendor	NA	NA	NA	NA	NA	

		sign for self advertising only						
12.6.7		Real estate sign: for self advertising only	NA	NA	<2sqm	1m	NA	A Real estate Sign shall be erected to advertise the sale / rent or lease of property upon which the sign is placed. • All Real estate Sign shall be temporary in nature. • All Real estate Sign shall be non-illuminated. • All Real estate Sign shall be displayed only during the times the premise is open for inspection or to be let out. No Real estate sign shall be placed at a distance less than 4m from the street line or the road right-of-way. • A Real estate Sign shall be placed so as to not impede pedestrian or traffic now. • Real estate Sign shall be limited to one sign per street face. • The maximum size of Real estate Sign permitted shall not exceed 2 sq. m (but not more than 1 sq. m per side). • A Real estate sign shall not have letters, figures, symbols or similar features that exceed 0.5m in height.
		Construction sign: For self advertising only	NA	NA	<4.4sqm	3m	NA	• Under no circumstance shall a Construction Site sign be permitted prior to the issuance of first building permit. • A Sign shall not be permitted unless there is direct access to that road from the property being advertised. • Sign shall be located as close as practicable next to, and parallel to, the property alignment. • A sign shall not interfere with any underground services. • No portion of a sign shall project over the carriageway or any surface used by motor vehicles. • The placement of the sign shall not cause a safety hazard to traffic (eg. Vehicle pedestrians and cyclists). • Signs must not present a danger to traffic when exposed to natural wind forces or wind created by passing vehicles.

								Construction Sign shall be limited to one sign per street face
12.6.8		Welcome sign	NA	<3.8 5sq. m	1.6m	NA		The content of welcome sign must be approved by Commissioner/Executive Officer of the ULB.
12.6.9		Flag sign	2 m	1.5 m	3 sqm	2.2 m		This advertisement device shall be useful in attracting the shop owners in the market area to display their product for selling through smaller and uniform advertising medium which shall enhance the city aesthetics by way of advertisement on uniform platform. Note: The Length and Width for advertising display for Flag Sign is devices can be interchanged/ altered as per suitability but not exceeding the total area (Length multiplied by Width).

12.7 Permission criteria for Self-Signage (Category-4):

All on premises advertising devices/ business/trade signs should be restricted to commercial areas and authorized business/trade establishments within institutional areas

- Under no circumstances shall on Premise Advertising Device be permitted in residential areas.
- Under no circumstances shall illuminated on premise signs be permitted to be in shops/commercial establishments facing residential areas on streets with width less than 12 meters.
- No sign shall be attached in any way to trees or shrubs.
- No Trade and Business sign, messages, posters or printed material of any nature shall be pasted onto any supporting column, pillar or post.
- On Premise Advertising Device in any form shall not obstruct any pedestrian movement (vertically and laterally), fire escape, door or window openings.
- No On Premise Advertising Device shall be in any form or manner interferes with openings required for light and ventilation.
- Under no circumstances shall On Premise Advertising Device be located to obstruct or alter the frontal silhouette of any transparent/translucent surfaces/ openings.
- Non-illuminated transparent/translucent signs shall be permitted on transparent/translucent external surfaces at any level.
- No trade and business sign shall be in any form or manner interfere with fire safety transit/exit space requirements and prescribed norms.
- All On Premise Advertising Device should under no circumstances reflect activity/activities other those undertaken within the premises.

- No sign shall contain additional advertising -promoting products or services other than approve use of the premises or site irrespective of whether that product or service is provided, sold or available on the site.
- All On Premise Advertising Device must have the compulsory required information as under:
 - i. Name of the trade and business
 - ii. Shop/Premise number
- All On Premise Advertising Device must conform to the prevailing laws with regard to decency, decorum, social harmony etc.
- All the signs be visually interesting and exhibit a high level of design quality.
- All On Premise Advertising Device must conform to structural/ architectural discipline of the surface / edifice / building / open areas.
- The scale and location of a sign should be compatible not only with the building to which it is affixed but also take into consideration nearby buildings, streets and existing signs.
- Materials used and all On Premise Advertising Device should be non-polluting, fire resistant and injury proof.
- Any new sign shall consider existing signs on a building, site or adjoining streetscape to ensure that the sign does not give rise to visual and/or physical clutter.
- All signs shall have a minimal projection from a building.
- The cabling and conduit should be concealed from view of the sign and any supporting structure from all angles, including visibility from the street level and nearby higher buildings and against the skyline.
- No sign under any circumstances shall be supported from, hung or placed on other signs. Each sign should be self-supporting or fixed securely with the architectural structure.
- Signs painted on or applied on the roof of a building are not permitted. Signs built and/or suspended from the roof at the roof level are also not permitted.
- The sign information should be kept to a minimum in the interest of both aesthetics and traffic safety.
- Where subordinate information is allowed, the name or use of the business shall be the dominant message on the sign- No supplementary (as in bylines, product specifications selling propositions) and subordinate information (addresses, telephone numbers, and other such details) which seeks the attention of drivers along vehicular stretches will be allowed as they present a traffic hazard.
- Sign should be non reflective such that they do not flash or glare at drivers on the streets. Signs should not use reflective surfaces as mirror foils etc as the use of such material are visually disruptive to traffic and can be hazardous to oncoming drivers.

12.8 Variable Message Advertising Devices like LED, LCD Screens/Module etc.

Because electronic displays are conspicuous by design and may have the potential to distract motorists, the objective is to limit this potential. It will be preferable if it is installed in the market area, commercial hubs and should not face the vehicular movement of traffic on major roads i.e roads having Right of Way more than 100 feet.

The following controls aim to reduce the frequency and extent of movement and colour change within a display.

- i. Signs should be installed only where the required sign viewing time does not result in a safety problem for the particular environment.
- ii. Sign should not be facing and shall not be visible from any major roads meant for vehicular traffic.
- iii. There is adequate advance visibility to read the sign.
- iv. The environment is free from driver decision points and there is no competition with official traffic signs.

12.8.1 Graphic with or without text

While driving the drivers glance from road to read the content of sign, and then glance back on road. In a study, it was concluded that during this glance, the maximum amount of copy which can be read by ordinary driver is three to four familiar words.

Electronic display generally refers to variable message sign (VMS) which may display combinations of any of the following:-

- i. Graphics, pictures, shapes, conspicuous colours or colour combinations. It may or may not contain text.
- ii. Long duration display periods are preferred in order to minimize driver distraction and reduce the amount of perceived movement. Each screen should have a minimum display period of 8 seconds. The time taken for consecutive displays to change should be within 0.1 seconds.
- iii. The complete screen display should change instantaneously.
- iv. Sequential message sets are not recommended.
- v. The time limits should be reviewed periodically.

The policy shall also be open towards providing and developing these mediums for provision of new public services/utilities etc. for the overall development of the city without being a hazard to traffic or the visual environment of the city. The permission shall be taken from Commissioners/ Executive Officer on case to case basis, before implementing any such mediums.